

Lokesh Sharma And Anr vs The State Nct Of Delhi And Anr on 31 August, 2020

Author: Rajiv Shakdher

Bench: Rajiv Shakdher

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IN THE HIGH COURT OF DELHI AT NEW DELHI

CRL.M.C. 1599/2020

LOKESH SHARMA AND ANR.

....Pet

Through : Mr. Paramveer Singh, Advocate
versus

THE STATE NCT OF DELHI AND ANR.

.....Res

Through : Mr. Hirein Sharma, APP for the
Ms. Neelam Chaudhary, Advocate
respondent no. 2 with R2-in-pe

CORAM:

HON'BLE MR. JUSTICE RAJIV SHAKDHER

ORDER

% 31.07.2020 [Court hearing convened via video-conferencing on account of COVID-19]

1. This is a petition seeking quashing of FIR No. 499/2015 dated 25.06.2015, Police Station Najafgarh, Delhi [in short "FIR"]. The FIR has been registered under Sections 498A, 406, 34 of the Indian Penal Code, 1860 [in short "IPC"].

2. The petition came up for hearing for the first time on 27.07.2020.

3. The petition is predicated on a settlement arrived at between petitioner no. 1 i.e. Mr. Lokesh Sharma and respondent no. 2 i.e. Ms. Reema Sharma.

4. Along with the petition, a copy of the judgement and decree dated 18.10.2019 passed by the Principal Judge (Family Courts), Dwarka, New Delhi is placed on record. The petition is numbered as HMA 3007/2019.

5. By virtue of the aforesaid judgement and decree, the marriage between petitioner no. 1 i.e. Mr. Lokesh Sharma and respondent no. 2 i.e. Ms. Reema Sharma stands dissolved.

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6. On perusal of the aforementioned judgement and decree, it is evident that petitioner no. 1 i.e. Mr. Lokesh Sharma and respondent no. 2 i.e. Ms. Reema Sharma had taken recourse to the provisions of

Section 13-B of the Hindu Marriage Act, 1955 to seek divorce, predicated on the ground of mutual consent.

7. The aforementioned judgement and decree also discloses that the parties had arrived at a settlement whereunder respondent no. 2 i.e. Ms. Reema Sharma was to receive Rs. 22,50,000/- towards full and final settlement.

8. The mode and manner of the payment is adverted to in the said judgement and decree i.e. judgement and decree dated 18.10.2019.

9. Respondent no. 2 i.e. Ms. Reema Sharma had joined the virtual-court hearing on the previous date i.e. 27.07.2020, albeit from USA. She had confirmed that she had received the settlement amount.

10. However, by way of abundant caution, the Additional Public Prosecutor was asked to verify from respondent no. 2's i.e. Ms. Reema Sharma's parents who are located in Delhi, as to whether any coercion was exerted on her for arriving at a settlement.

11. Mr. Hirein Sharma, learned APP has filed a status report in the matter.

12. Mr. Sharma, based on the status report, says that the statement of the parents of respondent no. 2 i.e. Ms. Reema Sharma was recorded.

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13. It is Mr. Sharma's contention that the statements so recorded reveal that no coercion was exerted on respondent no. 2 i.e. Ms. Reema Sharma. Respondent no. 2/Ms. Reema Sharma, who has joined the virtual-court hearing today as well, reaffirms the stand taken by her on the previous date of hearing.

14. Given the aforesaid circumstances and to enable the parties to move on with their lives, I am inclined to grant the prayer made in the captioned petition.

15. Consequently, the subject FIR shall stand quashed.

16. The petition is disposed of in the aforesaid terms.

JULY 31, 2020
c/KK

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RAJIV S

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